MESSAGE FROM THE EXECUTIVE BOARD

Respected Members,

The Executive of the All-India Political Parties Meet, being simulated at KSoL MUN 2026, welcomes your participation in this conference. We plan to channelize our efforts in making this a big learning experience. Considering the nature of the conference, we look forward to making this more of a learning engagement while keeping up the spirit of competition and the essence of debate. We expect the debate to comprise of substantive points, logical analysis of facts, suggestions, and advancement of political opinion. The meet is an endeavour to emulate the socio-political realities of India by bringing to light the various layers of polity and governance. With this committee, we aim to give you an insight into the complex political realities, the powers and responsibilities of a stakeholder towards the Nation and above all, bring out the leader within you.

The stakeholders should remember that not only a thorough and in-depth research, but a sense of political acumen and lobbying skills will be their key to success in this meeting. You should not only restrict your research to the recent developments but also dig the history and get acquainted with the whole concept since the agenda in hand is a crucial one. The portfolios are expected to be well-versed in their party policies and understand the alignments prevailing in the country. To clear any contentions, the participants need not let thoughts about our expectations be a hurdle in their research or give way to any fear regarding fulfilment of their objectives. The only thing the Executive Board will put strong emphasis on would be helping you understand the national polity, logical analysis, and argumentative debating. But do kindly note that a larger part of the proceedings shall include discussions by various methods laid down in the rules of procedure and discussions on the proposed documents, if any. Participants shall be tested on their knowledge and arguments over the various topics discussed in the discussion hours and the deliberations before putting any proposed document to vote.

This guide, although very comprehensive and factual, provides a basic idea of the topics likely to be argued upon and may vary from those of the respective party or portfolio's ideologies. In no way is this guide to confine a participant's research. The guide consists of subjective and factual data with legal arguments, but this is just to make the participants understand the ways in which they must make their addresses. We expect you to revert to us for any help with understanding or proceeding with the research in case you have any doubts or contentions till the end of the conference. Wishing you the very best,

Avyakt Mishra,	Jeeasha Haldar,	Rishita Ratan,
Moderator	Deputy Moderator	Scribe

Agenda: Consideration of the UGC (Review of) Regulations, 2026

INTRODUCTION

These regulations came into effect on January 13, 2026, as a replacement of the University Grants Commission's 2012 recommendation. These regulations are meant to eradicate discrimination based upon caste, creed, religion, gender, disability, language, or socioeconomic status. They establish a compulsory campus-wide system - complete with Equal Opportunity Centers, equity committees, helplines, and grievance systems - and hold the UGC to authorize to punish non-observance. The policies are in line with the principles of the National Education Policy 2020 that prioritizes full equity and inclusion as a key pillar of education reform. When the education minister announced the rules, he assured Parliament that they were not intended to discriminate against anyone and would not be abused.

CONTEXT AND RATIONALE

The demographic evolution of Indian higher education in the past two decades must be understood not only in terms of numbers but also in terms of a significant change in the social structure of Indian higher education. When the reservation policy was first constitutionally embedded and then gradually extended, first with the implementation of OBC reservations based on the Mandal Commission recommendations in 1990, and then with the addition of EWS reservations in 2019, the implicit assumption was that access, over time, would create a fair educational environment. However, the experience of the intervening years has shown that "presence is not necessarily equivalent to equality." Over the years, the student demographics of the higher education system in India have changed. The enrollment was approximately 43.3 million in 2021-22. According to official AISHE figures, more than 6.6 million belonged to the Scheduled Castes (SC), 2.7 million to the Scheduled Tribes (ST), and 16.3 million to the Other Backward Classes (OBC). Indeed, recent studies reveal that SC/ST/OBC students now constitute a huge majority (~61%) of all enrollees, compared to 43% in 2010-11. In line with this, only a small proportion of enrolment (including EWS) is taken up by students in the General category. According to one report, general-category enrolment has dropped to between 39 and 57 per cent in 2023, compared to 57 per cent as of 2011, and is now competing with reserved-category students for access to open (merit) seats.

Although there has been such a demographic shift, caste-based prejudgment and mistreatment are still issues on the campuses. The number of complaints of caste discrimination in higher

education increased significantly - 173 in 2019-20 to 378 in 2023-24 (an increase of 118.4 percent). The high-profile tragedies (e.g., the suicides of Rohith Vemula in 2016 and Payal Tadvi in 2019, which were allegedly due to caste harassment) led to Supreme Court orders on stronger protection. The history of anti-discrimination laws in India's higher education system has been marked by a number of well-meaning but badly executed laws. The UGC regulations of 2026 have replaced the UGC regulations of 2012 on the promotion of equity in higher education, which were essentially advisory in nature. They only suggested best practices that were not legally binding and did not impose any penalties for non-compliance. The UGC itself reviewed the implementation of the 2012 UGC guidelines in 2019 and found that it was "highly uneven," with centrally funded universities like IITs, IIMs, and central universities having at least nominally implemented the guidelines' recommendations regarding the establishment of SC/ST cells and grievance redressal mechanisms, while the vast majority of state universities and affiliated colleges, which make up about 80% of India's student body, had done almost nothing.

Against this background, the new UGC laws aim to transform previously voluntary codes into mandatory, enforceable rules, in line with the constitutional pledge of equality (Articles 14, 15, 16, etc.). They also resonate with international trends (proposals of Western Diversity-Equity-Inclusion), but through the caste prism of India. The UGC regulations were therefore devised to address the growing criticism, in line with NEP goals (e.g., 50 per cent gross enrolment by 2035) and to ensure disadvantaged students have access to a safe and enabling campus life. India's constitutional commitment to substantive rather than merely formal equality must be taken into consideration when analysing the reasoning behind the 2026 regulations. In addition to outlawing discrimination, the Indian Constitution mandates that the government take action to address the historical disadvantages that marginalised segments of Indian society have faced.

KEY TAKEAWAYS OF THE 2026 REGULATIONS

- **Coverage:** These rules should be adhered to in all the universities, colleges, and institutions (including distance/online programs).
- **Definition of Discrimination:** It forbids any kind of discrimination based on caste, creed, religion, gender, ethnicity, disability, or place of birth. Notably, caste-based discrimination is also specifically defined as against students/staff of SC, ST, or OBC on grounds of caste.

- **Equal Opportunity Centres (EOC):** Each institution should have an EOC that will facilitate diversity, support students (academic, financial, social), liaise with NGOs or police, and provide legal assistance. Small colleges (with fewer than 5 faculty) can adopt the parent university's EOC.

- **Equity Committees:** There should be an equity committee led by the head of the institution, which should be made up of senior faculty, non-teaching employees, and students of SC, ST, OBC, PwD, and women groups. These committees should meet at least twice a year and investigate complaints promptly (e.g., within 24 hours in severe cases, 15 working days in general cases).

- **Grievance Redressal:** The institution should have a 24x7 confidential Equity Helpline. The complainants can report the harassment anonymously and seek assistance; when the cases are severe enough, they are transferred to the police. Examinations of committee decisions can be made by a separate Ombudsperson, including under the UGC Grievance Regulations, 2023. (The laws ensure the confidentiality of informants when demanded)

- **Responsibility and Sanctions:** The leader of the respective institutions is the person who takes the major responsibility to enforce these rules. Institutions need to conduct awareness campaigns, educate employees, and have staff who serve as equity ambassadors to reach out. Lack of compliance may lead to UGC investigations and penalties, including, at a minimum, loss of funding, program withholding, or de-recognition under the UGC Act.

- **Data and Monitoring:** SC students (15.3%) and ST students (5.8%) are encouraged to report equity measures through AISHE and other systems. (Monitoring progress ties back to NEP goals and the wider Government education targets).

CURRENT LEGAL PROVISIONS

- **Constitutional Guarantees:** Articles 14-16 of the Indian Constitution have guaranteed equality and special privileges of disadvantaged groups. Articles 15(4) and (5) and 46 give the State the authority to promote SC/ST/OBC education. Article 17 abolished untouchability and, hence, rendered its practice a criminal offense.

- **Anti-discrimination Laws:** The Protection of Civil Rights (PCR) Act, 1955, makes it illegal to engage in the practice of untouchability. Specifically, the Scheduled Castes and Tribes (Prevention of Atrocities) Act, 1989 (amended 2016/2018) prohibits the existence of atrocities (offences) against SC/ST persons. PoA cases are handled by special courts, and relief/rehabilitation is mandatory. The NCRB statistics (Crime in India 2023) indicate that the case-load is high: 3.07 lakh SC/ST atrocity cases and 965 PCR cases were pending in the courts as of 2023.

- **Affirmative Policies:** India has 15% reservation system on SC, 7.5% on ST, and 27% on OBC (non-creamy layer), amongst other things, since 2006. Other seats are also reserved for the Economically Weaker Sections within the general category. The Government has large expenditure on scholarship schemes, e.g., SC post-matric scholarships, amounting to more than 50k crore/year.

- **Commissions and Agencies:** There are the National Commission on Scheduled Castes and the National Commission on Scheduled Tribes, which are Constitutional bodies (Articles 338 and 338A) charged with protecting the interests of the SC/ST. The implementation of the PCR and PoA Acts is reviewed by a Parliamentary committee of ministers (Social Justice, Tribal Affairs, Law, etc.), and by members of these Commissions. OBC welfare and reservations are also under the purview of a Constitutional body (Article 338B, post-2018), the National Commission for Backward Classes (NCBC). The Social Justice & Empowerment Ministry also has SC/OBC empowerment schemes, and the Ministry of Tribal Affairs is responsible for ST issues. Most state governments have SC/ST Commissions and anti-discrimination units.

EMPIRICAL DATA ON DISCRIMINATION

A high number of cases are reported against the SC/ST communities. The data provided by NCRB (2023) indicates that 57,789 crimes were registered against SC persons (a very slight increase of 0.4 points compared to 57,582 in 2022) and 12,960 crimes against ST persons (an increase of 28.7 points compared to 10,055 in 2022). (These are murder, assault, sexual offences, etc.; MP, Rajasthan, and Bihar possess one of the worst rates). In comparison, around 24 cases covered by the PCR Act (untouchability) were reported in 2023, suggesting under-reporting. It is worth noting that a good number of crimes against SC/ST are registered under the general IPC; cases under the PoA Act constitute only a portion of the total. These statistics support the idea of the ongoing aggression and violence within society. The nature of the crimes

recorded under the PoA Act also indicates the variety and gravity of the crimes committed against the SC population. Assault and hurt make up about 30% of the crimes, followed by insult and intimidation at 22%, land and property atrocities at 8%, rape and sexual violence at 7.3%, murder at 4.5%, kidnapping and abduction at 3.8%, and the remaining about 24% making up the combined IPC and PoA crimes. The rape and sexual violence factor is particularly worrying, with SC women being about 3.5 times more likely to become victims of rape compared to the national average rate of rape when adjusted for the population share. Geographically, this is a highly concentrated problem, with Uttar Pradesh, Rajasthan, Madhya Pradesh, and Bihar contributing to around 63% of SC atrocity cases in India, which shows that caste conflicts are highest in the "Hindi heartland" states, which also have high SC/ST populations and high numbers of students in centrally funded universities.

With regard to the campuses of higher learning, data on discrimination shows that the university is not an isolated sphere, but one that mirrors and, in certain instances, heightens existing societal caste relations. Formal complaints of caste discrimination in higher education registered with the UGC have grown from 173 in 2019-20 to 198 in 2020-21, 241 in 2021-22, 312 in 2022-23, and 378 in 2023-24, an increase of 118.4% in five years. It is recognized by experts that this is merely a portion of the actual incidents of caste discrimination in higher learning, with a study by the Centre for Policy Research in 2022 concluding that fewer than 1 in 10 incidents of caste discrimination in higher learning are formally registered, owing to apprehensions of students of possible academic, social, and administrative reprisals. According to official surveys (such as AISHE 2022), there are persistent gaps in enrolment data: e.g., the Gross Enrolment Ratio for SC youth (about 23%) was reported to be lower than the country average of 28.4%. Marginalized students (by some estimates, 20-30 percent higher) also experience higher dropout rates, suggesting the system is challenging. Lastly, the psychological impact of discrimination represents a factor that crime and enrolment data cannot measure. A study that was published in the Indian Journal of Psychiatry in 2021 found that students belonging to the SC/ST communities in higher education exhibited high rates of depression, anxiety, and social exclusion when compared to their general category counterparts, even after controlling for socioeconomic factors. The experience of discrimination, or the perception of being treated differently based on caste, even in the absence of a specific event, was found to be a strong predictor of poor mental health outcomes and dropout intentions. However, it was also found that only 12-15% of Indian universities have functional and well-staffed psychological counseling centers, according to the UGC's own assessment, implying that even

where the desire to provide support exists, the mental health infrastructure to support students dealing with discrimination is severely lacking. First-generation students from the SC/ST communities, who form a significant and growing proportion of the student body, experience academic culture shock, economic insecurity, and caste discrimination at once, with few support systems in place to help them cope with their specific challenges.

STAKEHOLDER PERSPECTIVES

- **Scheduled Caste/Tribe/OBC students & advocates:** Traditionally, disadvantaged groups tend to be more interested in aggressive enforcement of anti-discrimination laws. They cite the persistent biases and the necessity of institutional redressal systems. Many have publicly welcomed the regulations as a move towards ending discrimination on campuses, but warned that the equity committees should never be a mere formality. Civil rights organizations observe that, to date, most caste-bias grievances have been overlooked; the new regulations compel institutions to take action. Education specialists maintain that, as SC/ST/OBCs currently constitute a majority in enrolment, legal protections should be strengthened, in line with constitutional values and equality.

- **Students and families in the General Category:** Many students and families are responding with alarm. The critics claim that the regulations call general-category youth criminals without actually referring to them, as caste-related prejudice against SC/ST/OBC remains the only prejudice that is a formal component of the entire policy. The opponents believe that, since general-category students are not allowed to file a discrimination complaint under the caste provisions, this will lead to reverse discrimination. The shifting population (plummeting general-category enrolment) has been a source of anxiety. Several individuals (e.g., the magistrate of the city of U.P., who resigned on the spot) have denounced the rules as a black law and argued that it threatens to incite atrocities against the Brahmins. The UGC and the government have assured that no one will be deprived of fair treatment. Deputy Minister Nityanand Rai told the media that no one will be oppressed under these regulations.

- **Universities and Colleges:** They are now compelled to prepare to comply. Central institutions are already well-resourced and already have a grievance cell or two (e.g., SC/ST cell, counselors, etc.). However, in many institutions, particularly those managed by the state and with a low number of staff, the administration is under heavy load. The analysts warn that the regulations are based on new machines (EOCs,

committees, equity squads) that may fall asymmetrically in under-resourced campuses. Some institutions are afraid of facade compliance without additional investments or training. There should be a clear-cut procedure and schedule that will trim down on excuses of denial, delay, or deflection that characterised previous complaints. University heads insist on the necessity to address these past grievances.

- **Political Parties:** The new rules have become a politically partisan issue. The governing party, BJP, has adopted an extremely conservative stance in public, with its senior leadership (including the Home and Education Ministers) refusing to comment. According to BJP insiders, party strategists are planning an outreach to SC/ST/OBC communities, and officials have also threatened to fight misinformation. The Opposition Congress, which sees the BJP in a catch-22 situation, purposely maintained a low profile. According to Congress leaders, by repealing the rules, the BJP will offend the SC/ST/OBC allies; by retaining them, the BJP will lose its upper-caste voters. The Congress high officials have instructed their juniors to avoid speaking publicly on the matter. Nonetheless, there were conflicting signals: one state Congress chief (Ajay Rai) described the rules as divisive, while the student wing (NSUI) gave them conditional backing. Other coalitions (e.g., SP) mostly reflected Congress's wait-and-watch strategy; they stated that the guilty should not be spared and the innocent should not be framed (as Akhilesh Yadav remarked). None of the major parties was a formal supporter or opponent of the regulations, and they are likely to wait for the result of the legal review.

- **Civil Society & Media:** Academics and commentators have offered conflicting analyses. Some view the 2026 regulations as long overdue - the translation of good intentions into policy - but others are concerned about the excessive paperwork. The legal experts (e.g., in SCC Times) emphasize that the rules address gaps (since 2012), place definite responsibilities, and address confidentiality in the design of the helpline. The Vices, such as the narrow definition of caste discrimination and the lack of penalties for malicious complaints, have attracted criticism. OBC inclusion is approved by activist organizations such as AISA (leftist student body), but is condemned as the rules are not clearly stated and are rather symbolic. On the whole, media debate can be viewed as an expression of broader societal issues: how to ensure the protection of historically marginalized groups of people and how to anticipate the emergence of novel forms of grievance.

OPERATIONAL CHALLENGES

A number of concerns regarding the implementational feasibility of the new regulations are being raised:

- **Administrative Burden:** The 2026 model requires numerous new organs and procedures (EOCs, equity squads, compulsory reports, etc.). Critics observe that this will overload colleges and universities, particularly small or rural ones. The rules will just be a piece of paperwork that will not bring much substantial value without further financing or manpower. To provide equitable investigations, counseling, data management, and ongoing supervision, the institutions will require training.

- **Procedural Clarity:** The guidelines focus on speed (inflexible schedules for convening committees and reporting) but provide little information about the standards for investigations. As an illustration, they fail to indicate evidentiary standards, to apply witness-protection principles, or to elaborate on a privacy framework. A partial solution is given to confidentiality (the helpline conceals the identity of the informant upon request, although more extensive anti-retaliation and data privacy measures are not outlined in detail). Without explicit procedures, observers warn that the institutions would fall into mere formal compliance (closing cases on paper) without necessarily meting out actual justice.

- **Definition of Protected Groups:** One of the most prominent areas of disagreement is the definition of caste-based discrimination, which explicitly refers to discrimination against SC, ST, or OBCs based on caste. This implies that an unjust comment by an SC student to a non-reserved student would, in fact, fall out of the definition. Critics argue that this omission of the general category was not adequately explained.

- **Risk of Misuse:** Preliminary versions contained penalties for knowingly false complaints, but final regulations deleted any reference to false complaints. Many fear it will result in the accused students with general backgrounds being declared guilty without proof. UGC leaders have pledged that abuse will never be condoned, yet the lack of penalties for malicious complaints is a concern.

- **Campus Independence:** The grievance machinery is primarily administered within each institution (the head of the institution serves as the chairperson of the committee). Although there are protective measures (in case the head is involved, the second senior

official steps in to investigate the case), the arrangement has the universities investigating themselves. According to commentators, this may create a conflict, as administrative autonomy is essential to academic autonomy; the same should apply to grievance redressal. In cases of distrust among campus populations toward their respective institutions, they might not use these mechanisms.

- **Control and Implementation:** The rules outline the punishments; however, the implementation process requires sustained vigilance. Compliance may decrease if the dissipation of periodic monitoring follows the original fuss. Without effective, transparent monitoring (e.g., by UGC or outside agencies) to enforce it, experts allege, hefty fines will lack realistic impact and instead have token value. The fact that the Supreme Court has decided to stay the regulations on January 27, 2026 (thus, arguing that they present broad issues) suggests that the legal viability of these measures is being examined.

CONCLUDING REMARKS

The UGC 2026 regulations are a historic policy move. For the first time in history, campus grievance redressal for caste/religious/sexual harassment could become legally obligatory in all higher educational institutions. Advocates believe that it is a necessary move to transform constitutional ideals (equality, dignity) into a lived reality for millions of students. Statistics have shown that the majority of enrollments are now comprised of students in the reserved-category and that discrimination and crime against SC/ST communities, while not increasing sharply has been at alarming levels. Simultaneously, the discussion reveals valid implementation issues. Can these rules be made consistent without becoming overly bureaucratic? This will be the true test.

To continue, stakeholders propose a number of improvements, including establishing general categories for committees to prevent bias, reintroducing protections against false complaints, providing clear protocols for investigations (evidence requirements, anti-retaliation measures), and ensuring funding/training for EOCs. To create trust, regular impact audit (e.g., using AISHE data) and transparency may help. Amidst criticism of UGC, its officials have shown an inclination to make concessions (including adding general-category members to equity teams and disclosing the names of those making complaints to prevent false complaints), and are now considering terms. When enforced in good faith, with strong protections and clear procedures, the regulations can help decrease marginalized students' dropout rates and enhance

inclusiveness on campuses in the long run. Nevertheless, when rigidity and suspicion dominate, the regulations will create further divisions. As the Supreme Court and policy-makers discuss further, the Committee has the opportunity to consider all evidence and adopt a final structure that promotes equal opportunity for all students, in line with India's laws and social values.

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RULES OF PROCEDURE

Important Terminology: -

1. Opening statements on the issue: is a formal stand of the portfolio that the stakeholder represents. We shall move to opening statements once the quorum is set.

2. Public Session: Covered by the Media (Press.)

3. Private Session: Coverage restricted subjectively on the discretion of the Executive Board.

4. Starred chit is a normal chit where in the member can ask or address certain issues to the fellow member with whom the member sending the chit agrees or disagrees. The reply is mandatory and to be sent in writing. When a member has a very important question to ask to any of the members, but the other member or his party is evading that particular issue in the debate, in such circumstances, the member seeking to ask a question about the controversy in hand can send a starred chit to the fellow member to whom the question is asked via the moderator.

5. Un-Starred Chits: Any other chit that could contain substantive information, that needs to be sent to a fellow member or to the Executive Board, is a normal chit, unlike the other two; this need not be in the form of a question and can also be sent only to the Executive Board as well.

6. Plea to follow up: is a right given to the member if, according to him, the answer given is not satisfactory or appropriate, and further clarification on the issue at hand is required.

Opening Session: -

1. It is a type of Public Session.

2. In this session, "statements on the issue" will be taken from members of various political parties and civil-society activists (if any). However, a limited number of statements shall be taken depending upon urgency, necessity, diversity & relevance, and recognition of members in this regard will again be upon the discretion of the executive board.

3. Default time duration for an opening statement is two minutes (120 seconds). Exceeding the time limit will immediately subject the floor holder to being called out by the moderator of the session.

4. Each opening statement will be followed by 2 questions, each pertaining to the current speech.

Public Session: -

1. This session will be a formal session wherein the members are expected to follow the Rules of Procedure strictly without any exceptions. The members will be recognized at the discretion of the Executive Board, and there will be no cross- talks or exchange of any statements between the members without the Chairperson's permission.

2. Further, the members of the committee will send chits to the Chairperson, which shall mention the sub-issue that is to be discussed in the committee on a given agenda. Once the moderator has received the chits, the sub-issues will be voted upon in no definite order, and upon arriving at the sub-issue to be discussed, the committee will discuss that particular issue. Nonetheless, should the Executive Board feel that a relevant sub – issue has not been voted for discussion, they may, at their discretion, pass it, and the same shall be discussed.

3. The aforementioned discussion will mostly follow the pattern of a moderated caucus as observed in the general MUN R.O.Ps.

4. Time period for the individual speeches shall be upon the stakeholders.

5. Cross Questioning not allowed.

Note: "Sub-Issue" is the further bifurcation of the main agenda. The issues that are related to the main agenda and are Sub-topics to the main issue are called sub-issues.

Private Session: -

1. Moderated Private Session

2. Un-moderated Private Session

A. Moderated Private Session will be a formal session, but not as formal as a public session. The members will just be expected to follow the guidelines of a formal session, but strict adherence is not expected from the members. However, the members will not be allowed to leave their place and roam around in the committee. The members (if they wish to) can raise objections to the fellow member's statements and may even express their disagreement in between. Although the members are requested not to be too aggressive against fellow members,

in a moderated private session, the members will debate on the agenda as a whole, and the recognition will not be discretionary, as per the Executive Board. It is similar to the Zero hour under the Lok Sabha Rules of Procedure. No time limit is prescribed for each speaker as such.

B. Un-Moderated Private Session will be a completely informal session wherein the members can leave their places and do lobbying in the committee to gather more proponents of their ideology on the issue at hand. It is similar to the unmoderated caucus as per the UNA USA rules of procedure.

Points: -

- Point of order- This may be introduced in order to complain about improper parliamentary procedures; however, the Chairperson may overrule the point. This can also be used in case of a factual error.
- Point of Parliamentary Inquiry- This may be used to ask any doubts regarding the rules of procedure or similar things to the Presiding Officer.
- Point of Information- It essentially means to ask any questions regarding the speech of a concerned minister.